

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of:

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

JOINT DISCOVERY STIPULATION

Complainants Samsung Electronics Co., Ltd. (“SEC”) and Samsung Electronics America, Inc. (“SEA”) (collectively, “Samsung” or “Complainants”) and Respondents Ouraring Inc. and Oura Health Oy (collectively, “Oura” or “Respondents”) (each, individually, a “Party,” or together, the “Parties”) by and through their respective counsel, hereby stipulate that the following provisions (“Stipulation”) shall apply for this Investigation.

Service of Documents

1. Format. Subject to the provisions in this Stipulation, the Parties shall serve discovery requests, and responses to discovery requests, on each other in searchable PDF format. For discovery requests, an identical version in Microsoft Word (.docx) format shall be served at the same time as (or shortly after service of) the PDF document.

2. Manner of Service.

a. Pursuant to Commission Rule 201.16(f), the Parties consent to electronic service of any document, including discovery requests and responses to discovery requests, other documents not filed with the Commission or submitted to the ALJ, and documents that are filed with the

Commission or submitted to the ALJ. Electronic service shall be accomplished by sending the service documents by email or by secure file share as follows:

Party	Designated Email Address	Counsel
Samsung Electronics Co., Ltd., Samsung Electronics America, Inc.	OMM-Samsung-Oura@omm.com	D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, N.W. Washington, DC 20006 Tel.: (202) 383-5300
Ouraring Inc., Oura Health Oy	Oura-ITC@mayerbrown.com	Jasjit S. Vidwan MAYER BROWN LLP 1999 K Street, NW Washington, DC 20006 Tel.: +1 202.263.3000

b. The Parties agree that only the individuals permitted to access documents containing Confidential Business Information pursuant to the Protective Order (Order No. 1) will be included in the above e-mail distribution addresses.

c. In the event a Party seeks to serve any materials in a hard copy—e.g., documents, physical media, or source code—the Parties will coordinate in advance to identify the proper recipient and address for any such materials.

d. Correspondence that is not subject to service requirements and that does not purport to invoke or satisfy any duties, liabilities, or response deadlines may also be transmitted by email addressed to each of the designated email addresses above. Email addressed to an individual, and which does not include the designated email addresses above, shall not be deemed delivered for purposes of invoking a deadline, but may be used for informal purposes.

e. When the size of the file containing any such document is larger than approximately 15 MB, and cannot be practicably transmitted in a smaller zipped file, same day service of the documents in electronic form shall be made via secure file transfer over FTP, extranet, or other

secure file sharing and transfer service, with access credentials served by email.¹ The Parties may also serve hard copies of documents if necessary for timely service provided, however, that the serving party shall contemporaneously notify the receiving Party, via electronic service on the designated email addresses, of the hard copy service, and further electronic copies of those documents also shall be provided to the receiving party.

3. Timing.

a. Discovery requests sent by email on or before 8:00 p.m. EDT/EST shall be deemed to have been served on the day sent. Discovery requests sent by email after 8:00 p.m. EDT/EST shall be deemed to have been served on the following business day.

b. Discovery responses that are sent by email on or before 8:00 p.m. EDT/EST shall be deemed to have been served on the day sent. Discovery responses sent by email after 8:00 p.m. EDT/EST shall be deemed to have been served on the following day, although the Parties may jointly agree to a later service deadline if desired. Any supplemental interrogatory responses shall be cumulative of earlier responses, i.e., all prior interrogatory responses, minus prior attachments or exhibits, shall be included in a supplemental interrogatory response.

c. Documents that are filed with the Commission shall be served on the other Party as soon as practicable after filing, and in any event no later than 6:30 p.m. EDT/EST on the day filed, subject to any specific agreement between or among the Parties otherwise.

4. Documents Containing CBI. For all documents delivered by email that contain CBI subject to the Protective Order, the Parties shall password-protect the attached files. The Parties agree that password protection is not required for individual documents or materials

¹ In such circumstances, the document to which such voluminous attachments relate shall still be served by email as provided.

containing CBI when served by secure FTP or other secure file sharing and transfer service. The Parties agree to endeavor to include the following designation in the subject line of all email messages containing or attaching CBI: “Contains CBI” or similar indication. In addition, the Parties will endeavor to indicate the subject matter of the email in the subject line of all email messages, and not merely a reference to the investigation number, e.g. “337-TA-1335 [Party’s] Second Set of Requests for Production (Nos. #-##).” This provision does not supersede or reduce an individual’s obligations under the Protective Order to ensure the substance of the email or any attachments are marked to indicate confidential business information. The parties agree to cooperate and follow up as necessary in the event that any email containing CBI is inadvertently not marked as containing CBI.

5. Verifications of Discovery Responses. Required verifications of discovery responses must be served no later than ten business days after the close of fact discovery. The Parties agree that interrogatory responses may be verified using a single omnibus verification. A Party will not be required to verify discovery responses that contain the Confidential Business Information of another Party or a third party.

Document Productions

6. Image Files.

All documents, including any electronically stored information (“ESI”), with the exception of source code, shall be produced as either TIFF images as follows (except as permitted below), or searchable PDF format with Concordance or Opticon image load files that indicate the beginning and ending of each document unless the producing Party elects to produce select document(s) solely in native format. For Microsoft PowerPoint and similar presentation files, and for Microsoft Excel and similar spreadsheet files, the producing Party shall, upon reasonable

request for particular files, provide native versions thereof, within five (5) business days of the request. Subject to the technical capabilities of the producing Party or its vendor:

a. TIFF images shall be produced as single-page TIFF Group IV images, black and white, at 300 x 300 dpi resolution with a standard delimited concordance format (DAT file) and either IPRO (LFP file) or Opticon (OPT file) format, including document breaks and page counts. The producing Party shall provide native versions of Microsoft Access databases, and comparable spreadsheet and database files, and for video, animation, audio, and other documents that cannot be converted to a TIFF image format in a readily-usable and legible format. The producing Party may, at any time, reproduce any document in color in JPG format or at a higher resolution. Documents reproduced in color or at a higher resolution shall bear the same production number(s) as the document originally produced document where practicable. A single multi-page text file shall be provided for each document, and the filename should match its respective TIFF image filename. A commercially acceptable technology for optical character recognition (“OCR”) shall be used for all scanned, hard copy documents written in English or other Latin-character language. When possible, the text of native files should be extracted directly from the native file. Text files will not contain the redacted portions of the documents and OCR text files will be substituted instead of extracted text files for redacted documents.

b. Documents that are able to be converted to TIFF or JPEG or PDF format in a reasonably useable manner shall be produced in TIFF or JPEG or PDF format, rather than in native format.

c. Each produced document image shall contain a footer with a sequentially ascending production number (e.g., ABC00000001), provided that, if a footer would obstruct any information

on the document image, the sequentially ascending production number may be affixed to an alternative location on the document image.

d. To the extent possible, the unitization of a produced electronically stored document and any attachments or affixed notes shall be maintained as it existed in the original file or computer. Scanned/paper documents should be logically unitized (i.e., to preserve page breaks between documents and otherwise allow separate documents to be identified). If unitization cannot be maintained, the original unitization shall be documented in the associated load file or otherwise electronically tracked if possible.

e. A Party is required to produce only a single copy of a responsive document and a Party may de-duplicate responsive ESI (based on MD5, SHA-256, or SHA-1 hash values at the family level) across custodians.

7. Text Searchable Documents. No Party has an obligation to make its production text-searchable; however, if a Party's documents already exist in text-searchable format independent of this litigation, or are converted to text-searchable format for use in this litigation, including for use by the producing Party's counsel, then such documents shall be produced in the same text-searchable format at no cost to the receiving Party. Document level text files with a .txt extension will be provided where available by extracting text from the original file or, in the case of image files and PDFs without searchable text, through an industry-standard OCR process. The text file name will correspond to the beginning production number of the image or native file. A field will be included in the DAT with the path to the corresponding text file.

8. Metadata Files. The Parties agree that, absent a showing of good cause, a Party shall not be required to include metadata for general ESI production with the exception of the following: BEG_BATES, END_BATES, BEG_ATTACH, END_ATTACH, FILE_NAME,

CONFIDENTIALITY, REDACTED, PRODUCTION VOLUME. Additionally, fields showing the custodians associated with the document, the date and time that the document was sent and received, and the complete distribution list, shall generally be included in the production if such fields exist. All documents shall be processed in Universal Standard Time. All documents shall be produced in their original language.

9. Native Files. A Party is not required to produce the same ESI in more than one format. For documents that are produced as native files, the producing Party shall endeavor to include in the set of image (PDF or TIFF) documents a placeholder page where the native file would otherwise have been produced indicating the production number of the native file or other document, the confidentiality designation, and “File Produced Natively” or similar indication. In addition, native files shall be produced using a name that bears the production number, for example: ABC000002.xls. The producing Party shall also endeavor to indicate any confidentiality designation in the produced filename where possible and reasonable and subject to any filename character limits. The DAT file shall also include a path to the native file. After initial production of electronic documents in electronic file format has occurred, a Party may request that specific documents or file types be produced in native format by specifically identifying to the producing party the Bates number of the document sought and the basis for the request for production in native format. The Parties should then meet and confer in good faith to determine whether production in an alternative format is necessary. A Party shall not make unduly burdensome and unreasonable requests for production of documents in native format, and a Party shall not unreasonably refuse a request for the production of documents in native format.

10. Translations. The producing Party is not required to translate any foreign language documents as part of its compliance with the production format described above. Where a

document responsive to a discovery request exists in a foreign language and an English-language version of that document exists in the producing Party's possession, custody or control, whether created prior to or after the production of the foreign language document, the producing party shall produce both the original document and the English-language versions. Except as provided for by the Ground Rules or as otherwise provided herein, the Parties shall have no obligation to create translations of foreign language documents for purposes of this investigation. Productions that contain foreign language documents shall be Unicode compliant, where possible.

Electronic Discovery

11. No Email Production. The Parties agree that no electronic mail ("email") (including attachments) need be searched or produced in response to the Parties' respective discovery requests (including interrogatories, requests for production, and requests for admission) served in this Investigation. Email attachments maintained separately as independent documents or files may not be withheld from discovery on the basis of having been transmitted or obtained by email. For the avoidance of doubt, nothing in this Stipulation is intended to prevent, and does not prevent, a Party from producing and relying on its own emails in this Investigation, or requesting, compelling, and relying on emails produced by a third party. The Parties agree that, as a general rule, they will not be required to search for e-mail, and e-mail will not be required to be produced in this case. If, at such time as the receiving Party has reviewed the contents of the producing Party's primary document production, the receiving Party determines that e-mail production may be required, the receiving Party may indicate such determination to the producing Party, and explain why the information sought is not available in a less burdensome manner. Upon such determination, the producing Party and receiving Party shall meet and confer in good faith to identify which particular documents will be searched and to identify reasonable mechanisms for narrowly tailored searches

of, or for, such documents. The Party seeking production of e-mail must show that the need for the information outweighs the burden of searching for, identifying and/or producing the information. If, after the aforementioned meet and confer, the Parties have not been able to resolve their issue(s) pertaining to the production of e-mail, the Parties agree to submit to the Court for determination (i) their competing positions on whether or not the information sought is available in a less burdensome manner and whether the need for the information outweighs the burden of searching for, identifying, and/or producing the email, and, if appropriate (ii) their respective mechanisms for narrowly tailored searches of e-mail, including an identification of a specific number of requests, custodians, and search terms.

12. Limited Scope. The Parties agree that, in this investigation, voicemail messages, random access memory or temporary files; instant messages and chats; backup tapes; temporary internet files, history, cache, cookies, and other on-line access data; information from mobile phones, smart phones or PDAs; communications on personal chat services (*e.g.*, WhatsApp, iMessage, Snapchat, Slack, Facebook, Microsoft Teams); data remaining from systems no longer in use that is unintelligible on the systems in use; residual, fragmented, damaged, permanently deleted, and unallocated data; legacy computer systems; USB flash drives, or the like; portable disks; or dynamic fields of databases or log files that are not stored and accessed in the ordinary course of business will be considered not reasonably accessible and, accordingly, need not be searched and will not be subject to production absent a showing of good cause by the requesting party based upon specific facts that demonstrate a particular need for such evidence that justifies the burden of retrieval, and further subject to the producing Party's claim of undue burden or cost. If duplicative responsive documents are located on a centralized server or network, the producing party shall not be required to search for additional copies of such responsive documents that may

be located on the personal computer, or otherwise in the possession, of individual employees absent a showing of good cause that the production of such additional copies is necessary. No Party need deviate from the retention practices it normally exercises with regard to such “voicemail messages, random access memory, instant messages and chats, backup tapes, information from mobile phones, smart phones or PDAs, communications on personal chat services (e.g., WhatsApp, iMessage, Snapchat, Slack, Facebook), or dynamic fields of databases or log files that are not stored or retained in the ordinary course of business” when not in anticipation of litigation.

Confidentiality

13. Inadvertent Failure to Designate.

a. The Parties agree that any inadvertent failure to designate any materials produced during the course of this Investigation as “Confidential Business Information,” or any other designation described in the Protective Order (including any amendments thereto), shall not be deemed a waiver of, nor prejudice to, any application designation with respect to the confidentiality of such information or document(s), provided that the producing Party notifies the receiving Parties in writing promptly after discovery of such inadvertent failure to designate.

b. A receiving Party shall not be in breach of the Protective Order for any use of such discovery information before the receiving Party received notice of the inadvertent failure to designate.

c. If a Party inadvertently fails to designate information as confidential pursuant to paragraph 2(a) of Order No. 1 (Protective Order), that Party shall promptly notify the other party that such information should have been designated confidential and should be treated as confidential going forward. Where appropriate, the designating Party shall provide replacement copies of such materials bearing the appropriate confidentiality designation. Upon being notified

that the information was inadvertently not designated as confidential, the receiving Party shall take reasonable steps to retrieve the information from any recipients of such information who previously had been provided the confidential information and who are not authorized to access such confidential information under the Protective Order. The receiving Party shall return or certify the secure destruction of all copies of the originally improperly designated materials. If the receiving Party has reason to believe that the information has been disseminated to persons from whom it has not been able to retrieve the information through reasonable steps, it shall inform the producing Party of that fact. No Party shall argue that another Party is in breach of the Protective Order for any use of confidential information during the time that the information was not designated as confidential, unless it was clear from the face of such information that its lack of confidential designation was mistaken.

14. Retroactive Designation of Deposition Testimony. Deposition testimony may be retroactively designated as “Confidential Business Information”: (1) under the terms specified in paragraphs 2(a) and 6(a) of the Protective Order if retroactively designated within ten days of the date of deposition; (2) if the Parties consent; or (3) if the ALJ, Commission, or other body with authority so orders.

15. Third Party Confidentiality. The Parties shall take reasonable steps to ensure that the existence of confidentiality or non-disclosure agreements with third parties (“Third Party Confidentiality Obligations”) do not significantly delay the production of any documents, information, or things that a Party has agreed to produce. In the event the Party is required to obtain consent prior to producing third party documents, information, or things, the producing Party shall promptly notify the requesting party that it is withholding documents or things on grounds of third party confidentiality obligations. The Party shall provide the third party with a copy of the

Protective Order and any relevant addenda entered into this investigation as expeditiously as possible. If the third party does not object to the production within 14 calendar days (or other prescribed period if expressly provided in Third Party Confidentiality Obligations), the Party shall produce the discovery withheld on the basis of Third Party Confidentiality Obligations.

Expert Discovery

16. Governing Rules. The Parties agree that expert discovery shall be governed by Fed. R. Civ. P. 26 and Commission Rule 210.27(e)(5), which are deemed incorporated herein by reference. Subject to the provisions of Commission Rule 210.27(e)(5), the Parties agree that they will not seek discovery or testimony regarding: (1) drafts of expert reports, declarations, or affidavits; (2) retained experts' notes or their staff's notes; (3) communications between retained experts and counsel; or (4) communications between retained experts and their staff.

17. Consulting Experts. No discovery may be taken from or about any consulting expert who will not provide testimony and/or an expert opinion in the Investigation ("Consulting Expert") except to the extent that the Consulting Expert has provided information, opinions, or other materials that a Testifying Expert has relied on in forming the opinions to be expressed in his or her final report, trial, or deposition testimony. For avoidance of doubt, the Parties agree that any retained expert or consultant may not share any confidential business information received under the Protective Order with any other individual unless they are authorized under the Protective Order. The Parties agree non-clerical support staff of consultants or experts cleared under the Protective Order need not be separately identified and subscribe to the Protective Order.

Privileged Material

18. General Limitations. The Parties agree that the preparation and exchange of privilege logs is a costly and burdensome exercise. Accordingly, the Parties agree that they shall

not, as a general matter, be obligated to exchange privilege logs. However, in the event a dispute arises where a Party believes that the production of a privilege log limited in scope (*e.g.*, on a particular topic or addressing a particular event) may be appropriate, the Parties agree to meet and confer in good faith regarding the propriety and scope of such a privilege log.

19. Inadvertent Production.

Inadvertent production of Privileged Information (defined as “information subject to a claim of attorney-client privilege, attorney work product protection, common interest privilege, or any other applicable privilege or protection under law or regulation”) shall be governed by 19 C.F.R. § 210.27(e)(2). The production or disclosure of any Privileged Information, or the failure to object to the use of such Privileged Information, whether inadvertent or otherwise, and regardless of the circumstances, is not a waiver of the privilege or protection from discovery in this case or in any other federal or state proceeding pursuant to Federal Rule of Evidence 502(d). Such production, disclosure, or failure to object to its use shall not waive, impair, or forfeit any claim of privilege or protection shielding the Privileged Information and its subject matter from discovery. Notwithstanding this, nothing herein shall prevent the receiving Party from challenging the propriety of the claim of attorney-client privilege or work product immunity or other applicable privilege or immunity designation by submitting a written challenge to the Administrative Law Judge in accordance with the Ground Rules and/or Commission Rules.

If a receiving Party discloses to a person or an entity other than the producing Party any Privileged Information that was inadvertently or unintentionally produced or disclosed by another party, such disclosure shall not be deemed a waiver of the attorney-client privilege, common-interest privilege, work product immunity, or any other applicable privilege or immunity, either as to the specific Privileged Information disclosed or produced, or as to any other Privileged

Information relating thereto or on the same or related subject matter (and none of the Parties will assert such a waiver). In such circumstances, after the producing Party provides written notice (or notice on the record if the producing Party becomes aware of the inadvertent or unintentional disclosure at a deposition or hearing) designating such Privileged Information as within an applicable privilege or immunity, the receiving Party shall cooperate in good faith to protect the applicable privilege or immunity with respect to the disclosed Privileged Information, including retrieval or destruction of all copies, to the extent possible.

20. Challenges. Nothing in this Stipulation shall prevent a receiving Party from challenging the propriety of the attorney-client, attorney work product, common interest, joint defense privilege, or any other applicable privilege or immunity designation (based on information independent of the content of the asserted privileged materials) by submitting a written challenge to the ALJ in accordance with the Ground Rules. Unless and until the ALJ rules in favor of the receiving party on such a written challenge and grants use of the production or disclosure at issue, the receiving party shall not use or refer to the production or disclosure, including in deposition, any hearing, or in any filing.

21. No Waiver. The Parties agree that any production of material over which the producing party claims attorney-client, attorney work product, common interest, joint defense privilege, or any other applicable privilege or immunity designation, whether inadvertent or otherwise, shall not be deemed a waiver of that claim of privilege, provided that the producing party notifies the receiving party in writing promptly after determining that privileged information has been produced. A receiving Party shall not be in breach of the Protective Order for any use of such discovery information before the receiving Party receives notice of the producing Party's privilege claim.

Production of Third-Party Documents

22. Service to Parties.

a. Subject to the provisions of the Protective Order for this investigation, the Parties will serve each other with copies of any documents produced by third parties pursuant to subpoena within three business days of receipt. Such service may be made by e-mail, FTP link, or similar file-sharing service in accordance with the terms of this Stipulation. To the extent feasible, the Parties shall endeavor to produce or make available any source code produced by a third party, whether on a source code computer or in hard copy, within one (1) business day to each Party. If a Party or third party cannot meet these requirements, the parties will meet and confer regarding the production or reproduction of the documents, as appropriate. To the extent that the third party reproduction of the documents by the receiving Party is proscribed by a protective order amendment/addenda (e.g., source code), the receiving Party shall notify the other party that such documents have been produced by the third party and make such documents available pursuant to the terms of the protective order.

b. The Parties reserve their rights to modify this provision and/or seek specific accommodations as may become necessary to ensure the receipt of documents procured by subpoena sufficiently in advance of any relevant depositions.

c. The Parties agree that, if a production received by a third party does not bear production numbers, the requesting party agrees to stamp such documents with appropriate production numbers and confidentiality designations, and to serve copies of such document no later than ten business days of receipt.

d. A non-requesting Party may, within three business days of receipt of third-party documents, designate documents as containing its Confidential Business Information and until a

non-requesting party has had an opportunity to do so, such documents shall be treated as containing Confidential Business Information under the Protective Order.

Non-Waiver of Objections

23. No Waiver. Nothing in this Stipulation shall be interpreted as waiving a Party's right to object to any discovery request, including but not limited to objections on the basis of relevance, breadth, or undue burden.

Depositions

24. Duration.

a. Unless otherwise agreed, the daily limit of seven (7) hours shall apply to all depositions. To the extent not limited herein, discovery limitations are controlled by the Commission Rules and the Ground Rules.

b. The Parties agree that personal depositions will be limited to seven hours of testimony on one day unless otherwise agreed. The Parties will meet and confer concerning the duration of corporate depositions.

c. Any deposition time requiring the use of a translator shall be counted in an amount equal to 66% of the actual time incurred (e.g., three (3) hours of deposition time requiring the use of a translator shall count as two (2) hours). To avoid undue burden on translated witnesses, no witness shall be required to sit for more than seven hours of time on the record in a single day unless by prior agreement.

d. The Parties also agree that, if a witness will be deposed both in his or her personal capacity and on behalf of a Party, both depositions will be conducted together and subject to the time limitations of this provision, absent prior agreement.

e. Expert depositions shall be conducted in accordance with the Commission Rules and the Ground Rules except as set forth herein. Parties may depose each expert witness for up to 7 hours per expert per report on a substantive issue. Distinct substantive issues include (1) infringement, (2) invalidity, and (3) damages. If an expert serves a report covering both infringement and invalidity, that expert is subject to two 7-hour depositions (i.e., one deposition for each substantive issue or report). The limitations in this sub-paragraph shall not apply to depositions of expert witnesses as part of claim construction discovery.

f. Any Party may later move to modify these limitations for good cause.

25. Location.

a. The Parties agree to conduct depositions at a location reasonably convenient to the witness, as determined by the producing Party. For a witness located outside of the United States, except as otherwise agreed, the Parties agree to voluntarily conduct the deposition at a location that is both reasonably convenient to the witness and that is in compliance with the laws of the local jurisdiction(s), as determined by the producing Party. When necessary, the Parties agree to make witnesses available in another jurisdiction where the deposition may legally proceed and to work cooperatively to identify a mutually convenient jurisdiction, including a remote deposition. No Party producing a witness can refuse to submit for deposition solely on the ground that depositions are prohibited in the locality or jurisdiction where that party or that party's witness is located.

b. For a non-party witness, the Parties agree to conduct the deposition at a location reasonably agreeable to the non-party witness. The Parties agree that a Party scheduling a deposition of any third party will use best efforts to notify the other Party at least ten (10) business days before any deposition takes place or to involve the other Party in discussions with the third

party regarding deposition scheduling. The Parties also agree that any third-party witnesses appearing at a deposition may be questioned by all Parties to this Investigation, except that the Parties will make best efforts not to duplicate the other Party's questioning. This agreement does not preclude a Party from subpoenaing its own third-party deposition on the same third party.

c. Nothing in this Stipulation forecloses agreement by the Parties to conduct any deposition remotely using a videoconferencing service.

26. Applicable Rules. The Parties agree that all depositions, whether taken within or outside of the United States, shall be governed by Commission Rule 210.28, the Ground Rules, this Stipulation, and (if not contradicted by the foregoing) the Federal Rules of Civil Procedure.

Witnesses

27. Depositions of Hearing Witnesses. Witnesses who were not included on a tentative witness list and were not previously deposed may be deposed by the opposing party preceding the hearing only if the Parties agree the witness may testify at the hearing or the ALJ permits the witness to testify at the hearing. Every effort shall be made to schedule the deposition of an unidentified witness at a time and place that minimizes disruptions to the Parties' preparations for the hearing.

Hearing Equipment

28. The Parties agree to meet and confer to identify audio/video equipment for their shared use at hearing. To the extent such equipment is identified and procured, the Parties may, at their respective discretions, agree to split the costs of said audio/visual equipment evenly with Complainants and Respondents respectively each responsible for half.

Cross-Use of Discovery

29. The Parties agree that all discovery taken among the Parties in connection with *Certain Smart Wearable Devices, Systems, and Components Thereof*, ITC Inv. No. 337-TA-1468 (the “1468 Investigation”), including produced documents, discovery responses, and 30(b)(6) and 30(b)(1) depositions of Party employees or inventors represented by a Party, may be used in the present Investigation, subject to the terms of the Protective Order here. The Parties further agree that all discovery taken among the Parties in connection with the present Investigation prior to the March 31, 2026 fact discovery cut-off and completion deadline in the 1468 Investigation, including produced documents, discovery responses, and 30(b)(6) and 30(b)(1) depositions of Party employees or inventors represented by a Party, may be used in the 1468 Investigation, subject to the terms of the Protective Order in the 1468 Investigation. This agreements in this Paragraph regarding cross-use of discovery does not apply to any non-Samsung or non-Oura Parties or third parties.

Dated: April 9, 2026

Respectfully submitted,

/s/ D. Sean Trainor

D. Sean Trainor
Renia Zervos
Khanh Leon
Jacob Boesch
O'MELVENY & MYERS
1625 Eye Street
Washington D.C. 20006
Tel.: (202) 383-5300

Ryan K. Yagura
Ben Haber
Nancy Schroeder
Grace McFee
Ohona Chowdhury

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan
James A. Fussell, III
Saqib J. Siddiqui
Bryan C. Nese
Michael L. Lindinger
Tiffany A. Miller
Clark S. Bakewell
Alison T. Gelsleichter
Julia L. Haines
Tariq Javed
Amanda E. Stephenson
Seth W. Bruneel
Courtney Krawice
Matthew A. Stanford

O'MELVENY & MYERS LLP
400 South Hope Street
Los Angeles, CA 90071
Tel.: (213) 430-6000

Mark Liang
Bill Trac
Rui Li
Sorin Zaharia
Eric T. Ong
O'MELVENY & MYERS LLP
Two Embarcadero Center, 28th Floor
San Francisco, CA 94111
Tel.: (415) 984-8700

Marc Pensabene
Laura Gore
Caitlin P. Hogan
Nate Legum
Joanne Bae
O'MELVENY & MYERS LLP
1301 Avenue of the Americas, 17th Floor
New York, NY 10019
Tel.: (212) 326-2000

John Kappos
Cason Cole
Frances Mackay
O'MELVENY & MYERS LLP
2801 North Harwood Street, Suite 1600
Dallas, TX 75201
Tel.: (972) 360-1900

Email: OMM-Samsung-Oura@omm.com

*Counsel for Complainants Samsung
Electronics Co., Ltd. and Samsung
Electronics America, Inc.*

Séké Godo
Angeline Premraj
Paul Choi
Wm. Brady Nash
So Ra Ko
Andrew Huntsinger
Jaspreet Momi
Jennifer Weinberg
Sydney N. Royer
MAYER BROWN LLP
1999 K Street, NW
Washington, DC 20006-1101
Tel.: +1 202.263.3000

Robert G. Pluta
Nicholas H. Ciulla
MAYER BROWN LLP
71 S. Wacker Drive
Chicago, IL 60606
Tel.: +1 312.782.0600

Brian W. Nolan
MAYER BROWN LLP
1221 Avenue of the Americas
New York, NY 10020-1001

Christopher S. Schultz
ARENTFOX SCHIFF LLP
800 Boylston Street, 32nd Floor
Boston, MA 02199

*Counsel for Respondents Ouraring Inc. and
Oura Health Oy*

Oura-ITC@mayerbrown.com

CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on April 9, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, SW, Room 112 Washington, DC 20436	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☐ Via Electronic Mail
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, D.C. 20436 Email: JohnsonHines1478@usitc.gov	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☒ Via Electronic Mail
<i>Counsel for Respondents Ouraring Inc. and Oura Health Oy</i> Jasjit S. Vidwan James A. Fussell, III Saqib J. Siddiqui Bryan C. Nese MAYER BROWN LLP 199 K. Street NW Washington, DC 20006 Tel: 202-263-5282 Robert G. Pluta Nicholas H. Ciulla MAYER BROWN LLP 71 S. Wacker Drive Chicago, IL 60606 Tel: 312-782-0600 Email: Oura-ITC@mayerbrown.com	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☐ Via Electronic Filing (EDIS) ☒ Via Electronic Mail

/s/ Brian A. Treggs

Brian A. Treggs
Senior IPT Specialist
O'Melveny & Myers LLP
400 South Hope Street
Los Angeles, CA 90071